

Defendants seek the same amendment: to add an affirmative defense of workers' compensation exclusivity. Defendants' counsel states that the facts supporting this defense were discovered in April 2026 when Plaintiff testified at deposition that at the time of the incident he was engaged in the sort of tasks he would perform while on the job for his employer SUI SUN even though he was at that time not formally working. (Declaration of Robert J. Gundert in Support of Motion to Amend Answer at ¶¶ 8, 12.) Defendants then realized the potential legal significance of this testimony in conjunction with legal precedent they contend supports application of workers' compensation exclusivity in such circumstances. The court expresses no opinion on the merits of Defendants' proposed affirmative defense at this time.

Trial has not been set in this action. The court finds that Plaintiff will not be prejudiced by granting leave to file an amended complaint. Defendants' motions for leave to file amended answers are granted.

TELLEZ v. A PLUS TREE, LLC, ET AL.
Case No. CU26-00178

Petition to Compel Arbitration

TENTATIVE RULING:

Defendant A Plus Tree, LLC's petition to compel arbitration is GRANTED.

A petitioner seeking to compel arbitration bears the burden of establishing the existence of a valid arbitration agreement and the respondent shoulders the burden of proving facts for nonenforcement, such as fraud, waiver, or revocation, by a preponderance of the evidence. (*Rosenthal v. Great W. Fin. Sec. Corp.* (1996) 14 Cal.4th 394, 413; *Banner Entm't, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 356.) Once a petitioner satisfies the burden of proving that an agreement to arbitrate exists, the opposing party has the burden of proving the facts of any defense to enforceability by a preponderance of the evidence. (*Engalla v. Permanente Med. Group, Inc.* (1997) 15 Cal.4th 951, 972; *Vasquez v. Greene Motors, Inc.* (2013) 214 Cal.App.4th 1172, 1182.)

There is no dispute that Plaintiff executed an arbitration agreement requiring the parties to arbitrate "any and all disputes or claims between Employee and A-Plus that arise out of or relate to Employee's recruitment, application(s) for employment, offer and acceptance of employment, employment or separation from employment with A-Plus". (Decl. of Peterson, Exh. A.)

Plaintiff argues that the agreement should not be enforced because it is procedurally and substantively unconscionable.

There is some minor evidence of procedural unconscionability given that the agreement is a contract of adhesion and apparently the first document in the onboarding packet which appears to make the agreement a condition of employment. But, the agreement does advise the future employee to seek legal advice before signing. And, there is no

evidence that Plaintiff was rushed, surprised or could not understand the plain language used.

With respect to substantive unconscionability, there are some issues.

As far as mutuality, there are significant one-sided aspects of the arbitration agreement. For example, Defendants include an employee-only general release of liability for unknown claims which is not limited to the claims made subject to arbitration. (“For California Employees Only”....p. 2.) Additionally, Defendants include an employee certification - prior to any actual employment - that the employee represents all wages, salary, benefits and compensation owed to Employee has been paid and that Employee has properly recorded all time worked and received all required meal and rest breaks. These terms, if applicable, benefit only the Employer and appear intended to dissuade employees from bringing employment-related claims.

But the arbitration agreement also contains a severability clause. The court finds the above general release and certification terms are against public policy and not enforceable and require severance so as to not render the balance of the agreement to arbitrate unenforceable.

Plaintiff’s remaining arguments related to unconscionability do not bear weight.

Unlike *Cook v. Univ. of S. Cal.* (2024) 102 Cal.App.5th 312, the arbitration agreement in this case is limited to those claims that “arise out of or relate to Employee’s recruitment, application(s) for employment, offer and acceptance of employment, employment, or separation from employment” and any demand for arbitration must be “filed within the statute of limitations that is applicable to the claim(s)”. (Decl. of Peterson, Exh. A.) The application of the agreement to non-signatories is limited to covered claims against a “current or former officer, director, shareholder, agent or employee of A-Plus” in their identified capacity. (*Ayala-Ventura v. Superior Court* (2026) 119 Cal.App.5th 241, 258.)

There is no illegal PAGA waiver. To the contrary, the agreement explicitly states that the class, collective and representative action waiver “is not intended to and does not constitute a waiver of Employee’s right to bring representative claims under California’s Private Attorneys General Act”. (Decl. of Peterson, Exh. A.)

There is nothing unfair or one-sided about permitting the parties to first seek temporary restraining orders or preliminary injunctive relief when necessary, before transferring the matter to arbitration for final resolution. (See, *Ayala-Ventura*, 119 Cal.App.5th at 259 [finding no substantive unconscionability in an agreement that precluded claims both parties may have for injunctive relief].)

Lastly, whether or not the delegation clause is “clear and unmistakable” is irrelevant to determining that the delegation clause itself is substantively unconscionable. Plaintiff makes no attempt to show that the delegation clause imposes any unfair or one-sided

burdens that are different from the inherent features and consequences of the clause. (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227, 245.)

While some procedural and substantive unconscionability exists, given the strong public policy preference in favor of arbitration under both the Federal Arbitration Act and California Arbitration Act, and the existence of a severability clause, the court cannot find that the balance of the agreement to arbitrate is so procedurally and substantively unconscionable that the agreement should not be enforced. (*Armendariz v. Found. Health Psychcare Servs., Inc.* (2000) 24 Cal.4th 83, 114.)

Plaintiff's individual claims are compelled to arbitration. Plaintiff's class action waiver is enforceable under the Federal Arbitration Act. Alternatively, the court exercises its discretion to dismiss the class claims as Plaintiff is not a suitable representative.

Plaintiff's PAGA action is stayed pending completion of arbitration. An arbitration review hearing is scheduled for **October 21, 2027 at 8:30 a.m.** Case management conference statements are due 15 days prior to the hearing.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002